

		on the Strip of Land after Plaintiff filed her initial Motion for Preliminary Injunction which has caused an unsafe condition on the Strip of Land. In Opposition, Defendants contend that the Motion must be denied because the alleged trench on the Strip of Land has been filled in and leveled. Defendants submit evidence that as of January 2024, the Strip of Land is smooth, and that their tenants use it to access their property daily. (Le Decl., ¶ 7, Exhibit D.) The Court has reviewed the photographs submitted by Defendants and agree that there is currently no material change in the facts upon which the preliminary injunction was granted. Therefore, modification of the preliminary injunction is not appropriate, and Plaintiff's Motion is DENIED. The Court does not consider Defendants' arguments in Opposition that the preliminary injunction should be dissolved entirely because Plaintiff's Motion only sought to modify the preliminary injunction. "As a general rule, the trial court may consider only the grounds stated in the notice of motion." (<i>Luri v. Greenwald</i> (2003) 107 Cal.App.4th 1119, 1125.) Defendants are to give notice.
12	30-2022-01279372 Rucker vs. Harbor View Hills Community Association	Motion for Protective Order Plaintiff's Motion to Quash Subpoena (filed on 11/9/23) is DENIED as moot. This lawsuit involves Plaintiff's application to build a home on 2700 Harbor View Drive. In this motion, Plaintiff contends the subpoena improperly seeks documents related to Plaintiff's mortgage loans for his existing home at 3100 Harbor View Drive rather than the disputed property at 2700 Harbor View Drive. In opposition, Defendant states this was a clerical error, and it has served a revised subpoena with the correct address. Plaintiff has served a motion to quash the revised subpoena, which is set for hearing on 2/13/24. Therefore, the Court will address the parties' substantive arguments regarding the revised subpoena at the hearing on 2/13/24, making the present motion moot.